Verbatim Class Notes: Article 13, Personal Laws, and Constitutional Amendments

Part I: Personal Laws versus Fundamental Rights — The Conflict under Article 13 and Article 21

The second sentence is more important.

Consider this. Islam does not permit a Hindu to marry a Muslim girl unless she converts. And conversion is prohibited—why should she want to convert? Suppose a Muslim girl wishes to marry a Hindu, or a Christian, or a Parsi, without conversion. Now, Islamic law does not allow a girl to marry outside her own religion. Article 21 says that you may marry anybody. So the personal law is violating the fundamental right of a... and especially, this is discriminatory for the fact that a Muslim boy may marry anybody, including a Hindu girl. But a Muslim girl cannot. So it is a gender-based discrimination also—sex-based discrimination.

So, such a Koranic practice, if it is violating Article 21 of a citizen, can it be declared to be void under Article 13, sub-clause 2, or not? That is a question for us to inquire.

Part II: Constitutional Amendments and the Right to Property

Similarly, by constitutional amendment, some of our fundamental rights can be taken away. They have been taken away—especially the right to property. All of you must be aware that a great deal of constitutional amendment has taken place, and the right to property has gone. So, are those constitutional amendments valid or not? This is what we are going to study under Article 13, sub-clause 3.

Part III: The History of Personal Law Reforms and the Legislature

So far as personal laws are concerned, I must tell you that the Parliament of India has been discriminatory. Starting from the very first Parliament, they tried to introduce all manner of reforms among Hindus. Among Hindus, you see, earlier the age of marriage was before puberty begins, because in Hindu tradition it is a *Kanya Daan*. The *daan* is given, and generally—I do not know, I have not read the Vedas—but it is said that the

daan is given before puberty starts. Similarly, in Muslim law also, the age of puberty is the age of marriage. But you restricted it... and I am also a part of that; I am also a small participant in that sin. I was also part of a mild protest. Protest, in the sense—protest in discussion.

Part IV: The Evolution of Age of Consent and Marriage Laws — A POCSO Illustration

Earlier, the age of consent was sixteen years. The age of consent—I hope all of you know what that means?

[Student: "Yes sir, sixteen years for females, right?"]

For females, yes. Now, the Congress government raised the age of marriage to eighteen years, and the age of consent remained at sixteen years. So we pounced upon them. We said, "What is this? Do you want to keep our daughters in adulterous relationships? They cannot marry, but they can have sex? What kind of rule is this? Raise the age of consent to eighteen years as well." In Indian society, where we cannot expect relationships outside marriage, you are giving this law.

Justice Verma—Chief Justice Verma, he was from Indore, from Madhya Pradesh, originally from Satna—the committee that was formed, later, when reforms came, you know that under POCSO the age of consent became eighteen years. In fact, just the day before yesterday, the Supreme Court remarked that making such strict laws regarding the sexuality of girls between sixteen and eighteen years of age—how proper is that? Thousands of boys have gone to jail because of this practice. Girls are also in jail—do not think otherwise. This is a gender-neutral law. In sexual offenses...

There was some aunt—a *chachi*—who fell in love with her nephew. This is a story from a few days ago; perhaps some of you have read it. And she conceived from her nephew, who was sixteen or seventeen years old. And now she is compelling the nephew to marry her. Now, a boy of sixteen or seventeen will not be financially independent. He told his mother; the mother told the father. The family spoke to the *chachi*: "Very well, we will do nothing against you, but you must abort the child and leave this relationship." The *chachi* replied, "No. Now I shall marry only him. I will not leave him." The matter escalated. An FIR was lodged. Now the *chachi* is in jail, delivering a child. What is to be done? POCSO is a very strict law. You may Google it if you do not believe me. Girls... not *chacha—chachi*. *[Students laugh]* Why are you so worried? Worry about the *chacha* if you must. You worry about the *chacha*; I am worrying about the law. *[The teacher laughs]* The *chacha* is not within our field of study, because he falls outside

POCSO. Is that not so? It is the *chachi* who falls within our field. The one who is within POCSO—that is our concern.

Part V: The Judicial Approach to Personal Laws — Shayara Bano, Shah Bano, and Goolrokh Gupta

So you see, these laws—they violate our fundamental rights, a great many of them. A Hindu cannot marry more than once. A Hindu cannot marry a Muslim girl. And among Muslims also, there are many instances where their personal law itself violates their fundamental rights.

So, will those personal laws be declared void under Article 13, sub-clause 2? Shall we treat them as custom, or shall we treat them as personal law? There is a significant difference between custom and personal law. Is there not?

Now, regarding personal law, one thing has been said. For Hindus, considerable reforms were enacted. For Muslims, reforms were not enacted, and Jawaharlal Nehru said that they are not prepared. They have not yet become sufficiently educated to accept reforms. And even today, seventy-five or eighty years later, the same thing is said.

Now, the question arises: whatever reforms have taken place in Muslim personal law—were they enacted by overriding personal law, or was something else done? For instance, you must have read a case—the Shah Bano case. In Shah Bano's case, whether maintenance is to be given beyond the *iddat* period or not was a very important question. And Islamic law says that maintenance must be given within the *iddat* period, not beyond that. So, did the court override that law, or did it grant relief under some other law? You will observe that the Supreme Court, with a certain cleverness, grants some rights—it gives relief from the side, as it were—and it does not comment upon the personal law.

On the subject of personal law, the Supreme Court refrains, to some extent, from making a direct attack. Even when it declared instant triple talaq unconstitutional, it did so in a roundabout manner; it did not attack personal law directly.

There is a Muslim case—Shayara Bano's case. There was also a Christian lady; she was, I believe, educated at an NLU. She fell deeply in love—she fell in love with someone, and he was not a Parsi. Now, what happened was that her father passed away, and she wished to perform his funeral rites. But Parsi personal law, perhaps, states that if you marry someone from outside the community, you cannot perform the last rites of your parents. So she had to approach the Supreme Court. Now, observe: the Supreme Court granted her permission, but did it make any comment on the personal law? That is what you must examine. You must read this; these are original cases. Write down the name

of the case—everyone, write it down. Find out what the name of that case is. I do not remember everything.

[A student asks about the court's behaviour.]

A court remains a court only so long as society obeys its orders. Have you observed what happened in Pakistan—how the people burned down the Supreme Court? Read the case of Asia Bibi. And when Asia Bibi's case...

[A student asks about codification of Muslim law.]

Vote bank. These days, it is all vote bank. There is no other affliction. Many Muslims do not adhere strictly to the Muslim faith; they offer their prayers and so on, they believe, but they do not follow the rest strictly. Yes, but the government does not have the courage. If reforms had been enacted at that time, they would have been done. Look at how many Islamic countries there are—around sixty, I believe—and in nearly sixty of them, polygamy is prohibited. It is prohibited even in Pakistan. In Pakistan, a Muslim cannot have four wives. But the All India Muslim Personal Law Board will not allow four marriages to be stopped, because if that happens, they will go to jail. This has become a political matter, and in politics, everyone wants votes. Modi also wants votes.

[A student speaks about the common man.]

That is the worst thing in democracy.

Part VI: A Clarification on Talaq Laws — Talaq-e-Biddat versus Talaq-e-Ahsan

Yesterday, someone said something, and I became rather quarrelsome about it. Someone from your class—find out who it was. Someone said that you cannot take much action against fifth-year students, because their careers are at stake. And ninety percent of my blood boiled. I said, "These fellows smoke ganja, drink alcohol, call girls to their rooms and make them wear saris—and we should take no action because their careers are at stake? Do the younger students not have careers?" Try to understand that position. They are students; you are a professor. So I said, "If they throw shoes at us, must we, as professors, tolerate it?" This is insolence. The Vice-Chancellor wants to appease the students. The students must not be displeased. "Worry about your own career," they say. When the student has no such worry—when he is smoking ganja, drinking alcohol, beating people, calling them to his room and abusing them, uttering abusive language—and the Vice-Chancellor says, "No, no action should be taken." There is a girl, I think, from your class—is she in this class? Ask her. I said that this will not be tolerated. But the Vice-Chancellor has been promoting drunkards for ten years, and

that is why many people survive here. Is that not so? And that is why people support the Vice-Chancellor. So, the policy of appeasement—this is the greatest weakness of democracy: that you cannot take strict action...

Once, I was delivering a lecture somewhere, and I said, "For five years, this country should make Saddam Hussein its President, because he does not believe in appeasement; whatever is just, he decides accordingly."

So, that Christian... Parsi lady—what is her name—the one regarding her father's...

[Student: "Goolrokh M. Gupta. Goolrokh M. Gupta versus Valsad Parsi Anjuman."]

Yes, she married a Gupta, it seems. Pardiwala? Are there two Pardiwala cases, or does Goolrokh M. Gupta also come under this? Read both cases, whichever they may be.

[Student: "2010... this one is from 2017."]

Read both cases, whichever contains the relevant material, all right? What you must observe is this: if her personal law was violating her fundamental right, how did the court find a via-media? Did it directly state whether it was personal law or not? In the same way, I have asked you to examine the Shayara Bano case. And similarly, I mentioned that Indore case—what is its name? The Indore case regarding maintenance during the *iddat* period—the Shah Bano case.

Then there is a Christian case. Christian women did not have guardianship over their children. This exists in every religion; it existed among Hindus as well. Whatever is wrong with Hindu society—untouchability and all that—these things are said to divide Indian society. Read all of it; read all of it. That is why I am not telling you everything; I am making you read. So, for a mother to write her daughter's or son's name, the father's name was necessary, because he was the guardian. Or, say, to open a bank account, the father's name was required, because he was the first guardian, or something of that sort. So, observe how the court granted relief in that case also, but there too, it would not have commented upon the personal law.

And for Hindus, of course, there are very many cases. One case, to start with, you may read—what is the name of that case? Narsu Appa Mali. Yes, Narsu Appa Mali.

[Student: "Mali, Mali."]

It is Mali, very well.

[Student: "Was he a Mali?"]

I do not know; it is a case, that is all. His name is known to us—that much I know. Yes, tell me. No, not in that sense. The name is known to us in that way, not in the other.

The useful things, I do not know. And look up one or two more cases that the Supreme Court has decided, taking up personal rights. Please sit down. Let us proceed.

[Addressing a student's response on talaq laws]

The day before yesterday, the Supreme Court... Let us construct a hypothesis. Suppose a woman has now reached forty years of age. I am speaking of a matter twenty years hence, for the present purpose. There is a very prominent advocate in Nagpur. And a Muslim friend of his came to him and asked, "I wish to give talaq to my wife. Will our petition lie in the High Court, or in the District Court? How may I give talaq?"

So, all of you, tell me, assist me. How will a man who follows the Islamic religion give talaq to his wife? I have heard that talaq has become unconstitutional, illegal. What have you heard?

[Student: "You have heard correctly, sir. Triple talaq..."]

I have heard correctly? Yes, all right, I have heard correctly. I have heard correctly, have I not? Talaq has become illegal.

[Students call out: "Talaq has not become illegal. Triple talaq has become illegal."]

Triple talaq? It has become illegal. So single talaq will now be valid again? No, I mean... one second. Triple talaq has become illegal. Is single talaq valid? Stand up.

[Student: "One cannot say single talaq, but talaq is valid."]

So, if triple talaq has become invalid, does that mean one must pronounce talaq only once?

[Student: "That process itself has become invalid."]

That is precisely what I am saying. When the process has become invalid, then the advocate will require assistance; one must go to court. She is confused as to whether the case will be filed in the District Court or the High Court. Tell me.

[Student: "We will have to start from the District Court."]

Very well. But in the District Court, under which law will you file? Will you file under Section 13 of the Hindu Marriage Act?

[Student: "No, no, Muslim marriage..."]

So, no Muslim Marriage Act has come into being yet. Is there any Muslim Marriage Act?

[Student: "There is no codification... there is no codification."]

Where is Muslim law codified? The best student of the National Law University—that is what they call themselves; they sit at the forefront of every protest. Yes, madam, what

is your name? Aditi, very good.

[Student: "Talaq should be given within a course of time. Triple talaq cannot be given all at once..."]

"Within a course of time," no—forgive me, I mean... Are you educated or uneducated? Then why do you not speak in legal language? **Talaq-e-Biddat has been declared to be unconstitutional. Talaq-e-Ahsan is the only method of giving talaq. No other method is permitted.** This is legal language. Am I educated or uneducated? She is explaining as though she has gone to some village for a legal aid camp. What is the correct answer? **Talaq-e-Biddat has been held to be unconstitutional. Talaq-e-Ahsan—which means instant triple talaq has been said bye-bye.** You will have to pronounce talaq once in the first month, the second talaq in the second month, the third talaq in the third month—especially when the wife is not menstruating. All right? Not during those days. Now you will have to file a case in court. We are saying, up to now, Muslim law has not even been taught to you... but this much is common sense. What were you doing while preparing for the CLAT? This is a matter of your own timeline. Must I teach common sense also in class? Buy a newspaper sometimes. Why are newspapers printed? To be read. To eat peanuts with? To be read. So buy one and read it.

What were you saying? *[Student speaks indistinctly]* You did not even say the word "instant" once. Until you say "instant triple talaq," triple talaq has not been declared unconstitutional. **Instant triple talaq—the word "instant" must be added.** My friend, these days, even in faculty selections, I ask this very question, and everyone becomes confused as to whether one should file a writ petition in the High Court or a case in the District Court. *[The teacher laughs]* All right? So be very careful with your words.

Part VII: A Strict Warning against Generative AI for Legal Research

Now we shall come to constitutional amendment. This is for your self-study, but a question will come—it will compulsorily come. You must read it; you must read the original cases.

And one thing: do not study from ChatGPT—from Chat G-P-T. It gives wrong answers. Today, while coming here, I was reading something. I asked it what arguments had been advanced in a certain case that I am about to teach. I shall tell you the name of the case presently. No? Very well. It gave me entirely wrong answers. I said, "Have you not yet come down from your intoxication?" It replied, "What intoxication? What is the

matter?" I said, "You are giving wrong answers." It said, "What wrong answers am I giving?" Then I explained: "These are the arguments from that case." It replied, "Yes, Professor, you are right." *[Students laugh]* Please do not depend on your Chat G-P-T. Even when you know the material, it sometimes gives you wrong answers. I ask it what Dr. Ambedkar said at a particular place, what he said at Sholapur, and sometimes it fetches his Delhi speech and presents that. So, if you know the context—as we professors generally know the context, we are rarely cheated. Is that not so? You all will be cheated. So I humbly request all of you: try to depend on original sources. All right? Try to depend on original sources.

Part VIII: Introduction to the First Constitutional Amendment — The Shankari Prasad Case

Now, this girl has written it down; I am speaking of constitutional amendment. She will write "First Constitutional Amendment" there. Why did the First Constitutional Amendment come about? Who can tell the class, quickly? Quickly, tell me. Yes, you tell me.

[Student: "I can... Kanishk. I may be wrong about the facts, but there was a case—Champakam Dorairajan. In that case..."]

All right, you are not wrong; absolutely correct. I did not intend to bring that up, though that will also do. That was also one reason. But the most important reason was property. Recall Dr. Ambedkar's speech—the one I assigned as compulsory reading, his last speech in the Constituent Assembly. In it, he said, "Today we are going to start a life of contradictions."

What were the contradictions Dr. Ambedkar was speaking of, trying to speak of, that day? I do not know—what is the name? Riya? Ysra? Yes, raise your hand. Right. Oh, Devi ji. I am sorry. Let it be; I shall not ask. *[Students laugh]* I shall not ask, all right? Be happy. She is in a flutter. Should I not ask? What is your name? Sit down. Good luck.

Look, children—children, you are students. I say this again and again: so long as you are a student, you have the right to forget, and not to know, and to ask. But you should be prepared for tomorrow. Suppose I am a professor travelling in a train... One day, on a train, I met a girl's mother. Somehow or other, it happened. I think, in my early days, I used to travel in the front compartment. If there was an accident or something, someone would quickly inform me, "There is a body lying here." So, if I do not know some small thing, will I be disgraced or not? The entire NLU will be disgraced. When you go for an internship, and someone asks you a small question over tea and discussion, and you

cannot answer, or you answer incorrectly, or you say that for talaq one must file a writ petition in the High Court—no, the case can only be filed in the District Court—then the entire NLU will be disgraced. Your professors will be disgraced. And one consequence will be that for the next ten years, no student from NLU will be given an internship, let alone a job. Therefore, madam ji, invest a little—at least ten percent of your energy—in your studies. Whatever nuisance you are engaged in, continue with it; I have no right to say anything. But what percentage of your energy?

[Student: "Sir, one should give one hundred percent to studies."]

You, and one hundred percent? My God! Impossible! Very well, you tell me. Is your name Deepti? Deepali, yes. You also do not know. Yes, sir, what contradictions was Dr. Ambedkar speaking about?

[Student: "I am not sure. I do not study."]

Yes. I am not sure. Yes, latecomers. Hmm. Hmm. Yes, let... Hmm. Amar.

[Student: "The contradiction was that... the constitution that has just been made, in its politics..."]

Ah. So they were fools—they knew change would come, and yet they did not make the change? Say that you are lost in something. Is that not so? Yes, sir. Is there anyone who knows, or am I simply awarding noughts to everyone? Yes, what is your name? Ishita. Tell me. Good girl. Clap for Ishita. Even if she answers incorrectly, I shall be happy. Yes.

[Student: "I am not wrong... He said that once the constitution is made, one vote will have one value; it will be equal. But there was still economic inequality in India. So that is a contradiction."]

And one more? Social inequality. Is that not so? He stated in very clear terms, in very emphatic terms, that in free India, today we are going to start a life of contradictions. What contradictions? We are giving equality—political equality—to all the citizens of the country, whether he is the poorest of the poor, an untouchable, a member of the house-keeping staff, or the senior talented students of the university. What is your name? Pratiksha. They all have political equality. One person, one vote. One vote, one value. Equality has arrived. But there is a huge gulf in the economic and social dimensions of society.

Goodness—an NLU student. Half the time, in moot court... There is a character in our Ramayana—Bali. Have you heard the name of Bali? What was his special quality?

[Student: "Sir, as far as I recall, his special quality was that whomever he fought, he would absorb their powers."]

Half their power. Suppose I go to fight with him, and I am Bali. Then half their power comes to me. So suppose his power is one hundred horsepower. Fifty horsepower of his power comes to me, and even if my power is half a horsepower, I become stronger than him. Although, in truth, he was not half; he was a man of a thousand or two thousand horsepower.

So, when even the foolish students of NLU stand up in moot court, the students from traditional university colleges think, "Oh dear, this person is from NLU; he will certainly speak well." And half of them fall into depression, and their performance begins to deteriorate. All right?

So, as long as economic disparity persists, from today... My son tells me, "You are not a villager." I have lived outside for forty years; I lived in the village for fifteen or sixteen years. But even now, sometimes confidence fails me. When I go to certain places—like a few days ago, I went to Bombay to conduct interviews. I thought, "Bombay society must be very different." A wretched society; the people know nothing. *[The teacher laughs]* Duffers. But my confidence was weakening, and I had to gather it again. So, for those who have suffered economic disparity or social discrimination, how much difficulty those poor souls must face in gathering their courage. Therefore, Dr. Ambedkar said that we must dismantle this disparity by the fastest path, at the earliest, if we wish the country to be united.

And it was to remove this very disparity—and this had been discussed during the freedom struggle as well—that the lands of the zamindars should be taken away. The entire land of Nagpur belongs to the snake, and the rest... whatever they are called...

[Student: "Watandar?"]

They may say it in Marathi. In English, they were called something; in English, they called them tenant—owner and tenant. All right? They were their tenants. To put an end to this, zamindari abolition acts were enacted in almost every state. Land is a state subject; that is why there is no central legislation. All states enacted zamindari abolition acts. What did these acts do? They took the land from the landlords and distributed it among the peasants who were the tenants. He who worked the land, the land now became his. Now the great rajas and maharajas—their lands were taken.

And see, there was some trouble here, because they had the right to property. Property cannot be taken—or can it be taken? Ask me tomorrow; do not take me there today, or I shall digress. Ask tomorrow: can property be taken or not? It is called the *eminent domain power of the state*. Read about it. Some of you may already know; I taught it under Article 2—whether a country can secede. A sovereign nation has certain rights. That is also there.

[Student: "Sir, it is in Article 300A, perhaps?"]

Wherever it may be, even if it were not written, it would still exist—the eminent domain power of the state. All right?

So, when the zamindari abolitions took place, their lands were taken. They filed cases in court, saying, "I had a right to property, and the government has seized it. Property has been snatched by the government." And in Patna—there was a girl yesterday from somewhere in Bihar, Pallak, Pallak, yes, she is absent today—a raja from that region filed a case in the Patna High Court. And the Patna High Court immediately declared that act unconstitutional. Why? Because it is written in Article 13, sub-clause 2: the State shall not make any law which violates fundamental rights, and even if it does, that law shall be void. So what did the zamindari abolition act do? It took away property. It took away all of Shriya Mishra's property and distributed it among the poor. She is not poor, so she did not receive any. Is that not so? So, a case was filed. Now, the Patna High Court decided it before the other High Courts could decide. What is the name of that case? Look. The case which led to the First Constitutional Amendment, pertaining to the right to property. The case decided by a High Court, pertaining to the right to property, which led to the First Constitutional Amendment. And let me quickly add: Champakam Dorairajan was also a reason, but that pertained to another article—Article 15(4).

[Student: "Kameshwar Singh versus Province of Bihar."]

Do not call him simply Kameshwar Singh, or he will be displeased. It must have been written "Maharajadhiraj Kameshwar Singh"—the Maharaja of Darbhanga. Look, what is his full name?

[Student: "Maharajadhiraj Kameshwar Singh."]

Yes, Maharajadhiraj of Darbhanga. He was a very great raja.

[Student: "They have added 'Sir' as well."]

Yes. *[The teacher laughs]* What are you saying? He was not a small man. These were rajas and maharajas. Even the son of one small raja, or a medium raja, studies at our university. Do you know? A medium raja—no, not medium—a prince. For now, a prince becomes a raja only later, does he not? See, someone has researched who is a prince and who is not. What is her future plan? How long is the plan? Is it short or long? *[Students laugh]* All right.

Part IX: Analysis of Article 31B and the Ninth Schedule

So, the Patna High Court said that you cannot seize the lands of the zamindars; it is their property, which is a fundamental right. Jawaharlal Nehru was greatly distressed. So he brought the First Constitutional Amendment. And in the First Constitutional Amendment, Article 31—there are many, many other things; I am teaching you only a little—Article 31A was added, and Article 31B was added. Article 31A you will read on your own; there is not much in 31B. 31B I shall teach you now. Yes, read it. Who will read? Yes, read. What is your name? Yes, you are also a student, are you not? What is your name? Sanika. Sanika, where are you from? Nagpur. So, girls from Nagpur will not read? Print whatever you wish in the newspaper; I shall not spare any Nagpur student. For me, so long as you are in class, you will be reprimanded. Nowadays, Sania gets a great deal printed about me in the newspaper. Yes, read. 31, capital B. Capital B.

[Student reads Article 31B]: "Validation of certain acts and regulations. Without prejudice to the generality of the provisions contained in article 31A, none of the acts and regulations specified in the Ninth Schedule nor any of the provisions thereof shall be deemed to be void or ever to have become void on the ground that such act, regulation or provision is inconsistent with or takes away or abridges any of the rights conferred by any provisions of this Part and notwithstanding any judgment, decree or order of the court..."

In essence, what this says is: if any act is placed in the Ninth Schedule—the Ninth Schedule was added by the First Amendment; this means that in the original Constitution there were eight schedules, and you must have memorized all eight by now, as I told you on the very first day. If you do not remember them, evil days are coming for you. All right? Now, the ninth schedule was added by the First Amendment, and it says that if Parliament places any act in this Ninth Schedule, that act will become like Duryodhan after Gandhari opened her eyes.

[Students correct the teacher: "Gandhari."]

Yes, Gandhari. After Gandhari opened her eyes, Duryodhan became—what does that mean? He could not be killed; his body became like a thunderbolt. This means the act will gain judicial immunity. The judiciary will not be able to—in Kameshwar Singh, it was said that the right to property is being violated, equality is being violated, therefore it is unconstitutional. Now the judiciary will not be able to conduct judicial review of it. Even if it violates fundamental rights, and even if the Kameshwar judgment were to apply, it says that even if any court has already decided, still, it shall not apply. This means that whatever agricultural reforms, zamindari abolition laws come, if they are placed in the Ninth Schedule, they shall be immune from attack in a court of law. The

judiciary will not be able to declare them unconstitutional. Is it clear to all of us?

Now, then, a case came. This was challenged. The First Constitutional Amendment was challenged. And the name of the case was...

[Student: "Shankari Prasad."]

Shankari Prasad versus Union of India. I do not say this because any Muslim girl would not remember it, but so that people remember the name—I placed emphasis on Lord Shankar. All right? I have taught countless Muslims; I have countless Muslim friends. So I say such things here and there so that you... see, because of Amar's name, you will always remember that the state can be the greatest violator of fundamental rights. That is why fundamental rights are granted against the state. Nothing about Amar—whatever Amar's love story may be, let it be. I am not interested in that. And I request all of you, you should also not be interested in that. Is that not so? Yet, they may take interest. They should not. Please remember, all of you—is that not so? Because he is over eighteen now, but you are below twenty-one. *[Students laugh]* Remember this. Below twenty-one, yes? Now you must wait.

Part X: Homework Assignment and Expectations for the Next Class

Now, in Shankari Prasad, I am something of a gentleman, and therefore I am giving you a somewhat small task. In law, what is defined—what is an order, what is a rule, what is a by-law, what is an ordinance—this you will study when we come to it; that is one homework.

Second homework: the three or four cases relating to personal law, from every religion, those also you shall read. You shall read the original cases. I have perhaps told you: Chat G-P-T is not a trusted companion. Do not trust it. All right?

Third, in this case, you must read only three small things. Write them down. The arguments of the petitioners—on what grounds did they challenge it? One argument will certainly be that Parliament is a State, because Parliament falls within the definition of "State" under Article 12, and it has made a law, and that law violates our fundamental rights; therefore, under Article 13(2), it shall be void. And what other argument would they have advanced? And you must also find the name of the advocate. A very top-class advocate filed that petition. If you remember that advocate's name, then in today's era, just as Hanuman ji holds value in the Ramayana, so that advocate holds value in the Constitution of India. All right? So, second: the arguments of the respondent. On behalf of the respondent, the Attorney General would have spoken. What did he say? That no,

this is not void, it is not unconstitutional. He must have given some grounds for that. Third: the name of the Supreme Court judge who delivered the judgment, and what judgment he gave, on what grounds he gave it—this you must know. Shankari Prasad.

Kameshwar Singh—as soon as the Ninth Schedule arrived, the Bihar Act went through, and the judgment in Kameshwar Singh became zero. Is that not so? Kameshwar Singh's judgment, by the First Constitutional Amendment, has been declared void. All right? So you need not read it in great depth; it is not necessary. If you wish to see the reasoning—there was no particularly special reasoning; the right to property was a fundamental right, it was violated, so the act was unconstitutional. You will not find it terribly interesting, but you may read it.

I think tomorrow, this girl standing before me—she will give a presentation on all three of these points. She will stand right here when I arrive at 9:25. At 9:25 or 10:25? 10:25.

[Student: "It is the second period now."]

The second lecture. Yes, but she will not go here and there. Why does she go there, I do not know. There is a girl in the fourth or fifth year; her boyfriend was from this section. So she would come and stand here five minutes before the break, then spend a minute or two chatting with the students, and then she would begin to walk with me. She would say, "Sir, I have come to receive you; you are my dearest teacher." *[The teacher laughs]* A simple man, I believed that she had come to receive me. Many days later, I discovered that she came for someone else. So, I do not know why she runs off there. She is seen running every day.

She will remain in this class tomorrow. Whatever becomes of her, we shall see. And if there is any mistake in this, then attendance will be withheld for one week. All right? You should remember this. Bye-bye. All the best to all of you. Time must be up, yes? Yes, sir. Is there anything else? Yes, sir. Whether or not I learn anything else, coming to class on time and leaving class on time—these two things I have learned.

Go on, bye. Have a good day, all of you.

[Students: "Thank you, sir."]

[A student asks about the homework.]

Read and come.

End of Lecture